

25STCV23793 25STCV23793

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-08-19

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Case Number: 25STCV23793 Hearing Date: August 19, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

19, 2026 TRIAL DATE: Not set

CASE: Amilcar Rivas Moreno v. Anthony Torres, et al.

CASE NO.: 25STCV23793

PLAINTIFF'S

MOTION TO COMPEL FURTHER RESPONSE TO FORM

INTERROGATORIES

(NOS. 2.11 AND 17.1)

PLAINTIFF

AMILCAR RIVAS MORENO'S MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES,
SET ONE (NOS. 19 AND 55)

PLAINTIFF

AMILCAR RIVAS MORENO'S MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR
ADMISSIONS, SET ONE (NOS. 21, 23, 24 AND 25)

MOVING PARTY: Plaintiff

Amilcar Rivas Moreno

RESPONDING PARTY: Defendant Anthony
Torres

I. BACKGROUND

This action arises from a motor vehicle accident. On June 26, 2026, Plaintiff, Amilcar Rivas Moreno, filed three motions to compel Defendant,

Anthony Torres, to provide further responses to Plaintiff's First Set of Form Interrogatories Nos. 2.11 and 17.1, Special Interrogatories Nos. 19 and 55, and Request for Admissions Nos. 21, 23, 24, and 25. Plaintiff requests sanctions against Defendant and his counsel of record.

On August 6, 2026, Defendant filed oppositions. Defendant requests sanctions against Plaintiff and his counsel of record.

On August 10, 2026, Plaintiff filed replies.

II. LEGAL STANDARD

Under Code of Civil Procedure sections 2030.300 and 2033.290, parties may move for a further response to interrogatories and requests for admissions where an answer to the discovery request is evasive or incomplete or where an objection is without merit or too general.¿¿¿

Notice of the motion must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response.¿ (Code Civ. Proc., §§ 2030.300(c); 2033.290(c).)¿¿¿

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Finally, California Rules of Court, rule 3.1345(a)(3) requires that all motions or responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses.¿

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Monetary Sanctions. 222

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Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for “misuse of the discovery process,” which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery. 2 (Code Civ. Proc., § 2023.010.) 2222

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If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction. 22222222

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Sanctions shall be awarded against any party, person or attorney who unsuccessfully makes or opposes a motion to compel further responses, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. 2 (Code Civ. Proc., §§ 2030.300(d); 2033.290(d).) 22

III. DISCUSSION

A. Special Interrogatories (“SROG”)

SROG No. 19: MOOT. Defendant's prior response to FROG No. 2.11 supplies the information sought by this SROG. Alternatively, the court denies the motion as to SROG No. 19 because Plaintiff's counsel appears to have withdrawn the motion as to this interrogatory during telephonic meet and confer efforts. (See Discussion Re FROG No. 2.11 below.)

SROG No.

55: GRANTED. This SROG asks Defendant to describe all statements Defendant made to his insurer regarding how the collision occurred. Not all the statements made are privileged. For instance, the version of how the collision occurred that Defendant provided to the insurer is not protected. A further response is warranted.

B. Form Interrogatories ("FROG")

FROG No. 2.11:

DENIED. Defense counsel states that, during telephonic meet and confer efforts, counsel for Plaintiff, Gregory Goodheart, agreed to withdraw the motion as to this interrogatory. (See Cicek Decl., ¶ 5.) In reply, Plaintiff disputes any such agreement was made. However, Plaintiff does not provide any declaration to support his position.

FROG No.

17.1: GRANTED as to RFA No. 21.

C. Request for Admissions ("RFA")

RFA No.

21: GRANTED. This RFA asks Defendant to admit that Defendant or Defendant's insurer accepted liability for the incident on or about September 8, 2023. Defendant objected on the ground the insurer was not at the incident. Defendant also raises a belated objection based on Evidence Code section 1152.

These objections (and others asserted by Defendant) lack merit. The RFA does not turn on whether the insurer was present. Nor is Section 1152 pertinent here because this RFA does concern a settlement offer.

RFA Nos. 23-35: DENIED.

RFA No. 23 asks Defendant to "[a]dmit that YOU made a settlement offer to Plaintiff on or about April 11, 2025, in the amount of \$94,500." RFA No. 24 asks Defendant to "[a]dmit that YOU made a settlement offer to Plaintiff on or about July 24, 2025, in the amount of \$98,000." RFA No. 25 asks Defendant to "[a]dmit that YOU increased the settlement offer after the initial offer was made." These RFAs are not reasonably calculated to lead to admissible evidence.

Absent from Plaintiff's motion or reply is an explanation of the relevance of these RFAs or how they will lead to admissible evidence.

D. Monetary Sanctions

Given the ruling granting in part and denying in part the motions, the court declines to award sanctions to any party.

IV. DISPOSITIONS

The motions are Granted In Part, and Denied In Part, as indicated herein.

The requests for sanctions are DENIED.

Plaintiff to give notice, unless waived.

Dated: August 19,
2026

Brock T. Hammond

Judge of the Superior Court